

JACKSON, J., dissenting

something of a hybrid.² It holds that a former President may or may not be immune from criminal prosecution for conduct undertaken while in office, to be determined on a case-by-case basis. According to the majority, whether a former President is immune depends on how his criminal conduct is classified, as among three possible categories.

First, with respect to any criminal conduct relating to a President’s “core constitutional powers”—those subjects “within his ‘conclusive and preclusive’ constitutional authority”—the President is entitled to absolute immunity from criminal prosecution. See *ante*, at 606, 609. Second, expanding outward from this “core,” regarding all other “acts within the outer perimeter of [the President’s] official responsibility,” the President is entitled to “at least a *presumptive* immunity from criminal prosecution.” *Ante*, at 614. Third, if the criminal conduct at issue comprises “unofficial acts, there is no immunity.” *Ante*, at 615.³

² Its feigned judicial humility notwithstanding, see *ante*, at 641, the majority’s holding goes further—*much* further—than necessary to resolve this case. Petitioner’s argument in both the lower courts and this one was that a former President is categorically immune from federal criminal prosecution for “all” acts within the outer perimeter of his official duties. See Opening Brief for Defendant-Appellant in No. 23–3228 (CADC, Dec. 23, 2023), p. 9; 91 F. 4th 1173, 1188–1189, 1195, 1208 (CADC 2024) (*per curiam*); Brief for Petitioner 41–47 (arguing for absolute immunity for “all actions within the ‘outer perimeter’” of a President’s responsibilities, and imploring the Court not to adopt a “‘function-based’ approach”). Thus, it would have been enough for the Court simply to reject petitioner’s categorical claim and leave it at that. But the majority *sua sponte* rephrased the question presented, and it now takes full advantage of this opportunity to devise from whole cloth an entirely new legal framework for judicial evaluation of potential criminal immunity for former Presidents.

³ It is important to note that the majority reframes the immunity question presented here as a separation of powers concern that is compelled by Article II—as if what is being asked is whether Congress can criminalize executive prerogatives. See, *e. g.*, *ante*, at 606–607; see also *ante*, at 650–652 (BARRETT, J., concurring in part). But that is not anywhere close to what is happening in this case. No one maintains that Congress has passed a law that specifically criminalizes the President’s use of any power that the